The state commission submits its annual or special reports to the state government. These reports are laid before the state legislature, along with a memorandum of action taken on the recommendations of the state commission and the reasons for non-acceptance of any of such recommendations[7].

Children's Courts

The Commissions for Protection of Child Rights Act (2005) also provides for the establishment of Children's Courts for the speedy trial of offences against children or of violation of child rights.

Thus, the state government may specify at least a court in the state or specify for each district, a Court of Session to be a Children's Court. These courts can be set up by the state government only with the concurrence of the Chief Justice of the High Court of that state.

For every Children's Court, the state government specifies a public prosecutor or appoints an advocate (who has practiced for seven years) as a special public prosecutor for the purpose of conducting cases in that court.

[1]This Act came into force on 5th February, 2007.

[2]Annual Report 2020-21, National Commission for Protection of Child Rights, p. 10.

[3]The Department of Women and Child Development, Government of India, came into existence as a separate Ministry in 2006. Earlier, since 1985, it was a Department under the Ministry of Human Resource Development.

[4]Before the Commissions for Protection of Child Rights (Amendment) Act, 2006, it was the Minister-in-charge of the Ministry of Human Resource Development.

[5]Without obtaining leave of absence from the Commission.

[6]Without obtaining leave of absence from the State Commission.

[7]Before each House of State Legislature where it consists of two Houses, or where such Legislature consist of one House, before that House.